

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 28, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:05 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case, Bryan Cook (arriving at 6:48 p.m.), Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne and Dicky Shanor (arriving at 7:55 p.m.). Absent: Scott Roybal and Jeff White. Also present were: Carol Intlekofer, City Clerk; Sylvia Hackl, City Attorney; Alessandra McCoy, Assistant City Attorney; Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. Mayor Orr noted that Mr. Shanor, Co-Spokesperson for the governing body, was absent due to travel and inclement road conditions.

Jonathan Bertsch, President, Local Union #279, continued with the presentation of the Union's proposal, which included a brief video that he referred to as the "NFPA1710 Whiteboard" (National Fire Protection Association). Following presentation of the video, Mr. Bertsch presented the Union's proposed agreement on a section-by-section basis with proposed changes in red text. and will include sections that have been changed (in red text), and would be reviewed by himself and Andrew Dykeshorn, Local Union #279. Mr. Bertsch and Andrew Dykeshorn, Local Union # 279, reviewed the following sections of the Union's proposal: Section 4, Term of Agreement; Section 21, Holidays; Section 18, Hours of Work; Section 20, Inclement Weather Conditions; Section 17, Severance Pay; Section 33, Uniforms; Section 47, Labor/Management Relations; Section 46, Wildland; Section 24, Working in a Higher Job Rank; Section 2, Definitions, and Section 27, Wellness/Fitness Program. Review included: substantive changes and additions, revisions of sections that will differ from current contract provisions, and clerical changes and clarifications. Mayor Orr recessed the special meeting at 7:00 p.m. to allow Union representatives to caucus, and Mr. Roybal moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. Mayor Orr identified City staff requested to be present at the executive session in addition to members of the governing body. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 7:01 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:55 p.m., and announced that Mr. Case had left the meeting and Mr. Shanor had joined. [City Clerk note: Mr. Case left after conclusion of the executive session, and Mr. Shanor arrived prior to reconvening the special meeting, with a quorum being present at all times]. Mr. Bertsch and Mr. Dykeshorn concluded the review of the Union's proposal including Sections 15, Company Strength, and 22, Classification of Employment and Basic Wages. During discussion on Section 22, Mr. Bertsch provided and commented on 3 handouts (on file with City Clerk's Office). Mr. Bertsch and Mr. Dykeshorn provided additional information on the Union's proposal requesting a 5% increase to base wages and additional revisions to Section 22. Mayor Orr noted that both the Union and City's proposals were still on the table and were being addressed separately. Mayor Orr requested that the Union provide a list of priorities including costs and potential revenues to present at the next meeting. Mr. Bertsch advised they would do their best to provide the information. In return, Mr. Bertsch requested to receive a list of priorities from the City. Mayor Orr, upon inquiry, advised that the City isn't prepared to present any counter offers at this time, and that the City will provide a listing of their negotiation team at the next meeting.

Mayor Orr stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 8:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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